THE CORPORATION OF THE TOWNSHIP OF NIPISSING
BY-LAW NO. 2025-27

Being a By-law to stop up, close and sell part of the Original Shore Road Allowance in front of Lot 3, Concession 19, designated as Part 1 on Plan 42R22637, in the Township of Nipissing, District of Parry Sound.

(Wynia)

LEGISLATION

WHEREAS:

1. pursuant to Section 27(1) of the *Municipal Act, S.O. 2001, c.25*, as amended, municipalities are given authority over highways within their jurisdiction;

2. the Original Shore Road Allowance which is the subject matter of this by-law is within the jurisdiction of this municipality.

AND WHEREAS pursuant to the Municipality's Procedures for Public Notice By-law No. 2024-07, the Municipal Administrator, Clerk and Treasurer of this Corporation did cause a Notice of the proposed By-law to be published in accordance with the requirements of the said By-law.

BE IT ENACTED AS A BY-LAW OF THIS CORPORATION AS FOLLOWS:

1. Stop Up and Close - Original Road Allowance
This Council does hereby stop up and close to that portion of the public highway described in Schedule "A" attached.

2. Surplus Property - The said lands described in Schedule "A" are declared to be surplus to the requirements of this Municipality.

3. Authorization for Sale - This Council does hereby authorize the sale of the said lands described in Schedule "A" for a consideration of **$2,013.62**

4. Easements - This Council does hereby authorize the transfer of such easements over the lands described in Schedule "A" attached hereto as may be required by the utility providers. Notice of the proposed road closing was sent to Hydro One Networks Inc., Bell Canada and Public Works. Each has responded that they do not have any easement requirements.

5. Sale of Land By-law - Compliance with the Notice provisions of By-law 2024-07, will be deemed to be in compliance with the Notice provisions of this Municipality's Sale of Land By-Law 2023-03.

6. Execution of Documents - The Clerk is hereby authorized for or on behalf of the Municipality to execute, for the Municipal solicitor an "Acknowledgment and Direction" authorizing the Municipal solicitor to complete the Electronic Registration for any required Easements, and the subsequent transfer of title relating to the lands described in Schedule "A".

7. Clerk's Affidavit - There shall be attached to this By-law, as Schedule "B", an affidavit by the Clerk of this Corporation, setting out:

    a) the procedures taken for the giving of Notice pursuant to By-law 2024-07;

    b) the procedures taken for notice to Public Utilities and applicable Government Departments or Ministries, and;

    c) confirmation that the Municipality's procedures taken are in compliance with its municipal by-laws and the provisions of section 31 (2) of the *Municipal Act, 2001* as amended.